



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

July 7, 2020, 4:00 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

4:00 P.M. WORK SESSION – ELECTRONIC MEETING VIA LIFESIZE

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love.

CITY STAFF PRESENT ELECTRONICALLY: Ifo Pili, City Administrator; Paul Jerome, Assistant City Administrator/Finance Director; Steve Mumford, Assistant City Administrator/Community Development Director; Pete Kane, Long-Range Planning Manager; Michael Hadley, Planning Manager; Jessa Porter, Planner; Fionnuala Kofoed, City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager; Jeff Weber, Fleet and Facilities Operations Director; Ross Fowlks, Fire Chief; and Angela Valenzuela, Human Resource Manager.

Public meetings will be held electronically in accordance with Executive Order 2020-1 Suspending the Enforcement of Provisions of Utah Code 52-4-202 and 54-4-207 due to Infectious Disease COVID-19 Novel Coronavirus issued by Governor Herbert on March 18, 2020.

Mayor Westmoreland called the meeting to order at 4:04 p.m.

1. CITY ADMINISTRATOR INFORMATION ITEMS

2. AGENDA REVIEW

10. AGREEMENTS

10.A. AGREEMENT – Professional Service Agreement between Eagle Mountain City and Accela for Land Management Software and Support.

Councilmember Curtis inquired regarding the role of the new software in relation to existing systems.

Assistant City Administrator/Finance Director Paul Jerome stated the Accela software will drastically supplement the current Springbrook software. Mr. Jerome explained that Accela offers more advanced features and options for building permits and planning. It integrates with Esri GIS software and systems and allows for online interfacing between developers and staff, and online submittals, payments, and reviews. He stated the software will increase Planning and Building staff efficiency through facilitating electronic interfacing to better meet the demands of rapid City growth.

Assistant City Administrator/Community Development Director Steve Mumford explained Accela software also allows for digital inspection reporting. He stated Accela will be the primary software used for submittals, builder/development communication, and coordinating plan reviews. Bluebeam software will still be used for plan reviews, and Esri GSI software will be used in conjunction with Accela.

Mr. Jerome stated the Accela software license includes 25 users. The City's license will allow for 21 regular level users and four superusers with supervisor/administrative rights. The number of licensees exceeds the City's current needs and allows for growth. He stated other large cities, such as Salt Lake City and New York City, use Accela, and the program will be able to meet the City's current and future needs.

Councilmember Love expressed concern that the cost of the software is equivalent to a part-time or full-time employee and asked if the hours saved utilizing Accela software will be greater than the hours an additional employee would work.

Mr. Jerome stated once implemented, the cost of the software will be less than the expense of a full-time employee with health benefits. During an RFP process approximately three years ago, the final two companies considered were Tyler Technologies and Accela, which has an evolving partnership and integration with Springbrook software. Due to mergers and other changes within the software companies and services, the current cost of Accela and Springbrook services equal approximately half of the cost of comparable Tyler Technologies services.

Mr. Jerome explained the budget included funds for six months of service; however, due to an accelerated schedule, the software will be implemented sooner than expected and a budget amendment will be forthcoming to cover the resulting cost increase.

Councilmember Clark asked if the software will track real-time statistical information. Mr. Mumford stated the software includes tracking software; however, he is not yet familiar with all the software features and the GIS software also has tracking features. Mr. Jerome stated Accela representatives indicated the software has statistical tracking capabilities that exceed the Cityworks software used in other cities to track real-time data.

Councilmember Love expressed concerns regarding the time commitment requirements in the agreement. Mr. Jerome stated staff concurred with her concerns. He has informed the Accela representative the City does not have the staff time to devote to the proposed implementation schedule requirements. The Accela representative agreed to allow staff to govern the software implementation rate.

City Attorney Jeremy Cook stated he is currently working with Accela representatives to negotiate the terms of the contract and requested Council's approval of the agreement to allow for further negotiations.

Councilmember Clark inquired if the City can void the contract should the software fail to meet staff expectations. Mr. Cook stated the product capabilities appear to be well defined and in

accordance with staff expectations; he is examining terms in the contract that provide for legal recourse should the product prove dissatisfactory.

City Recorder Fionnuala Kofoed stated the Records Office will also use Accela software for business licensing, and Deputy Recorder Johna Rose has tested the software and feels the software will be beneficial.

10.C. AGREEMENT – Second Addendum to an Agreement between Eagle Mountain City and Ifo Pili for City Administrator Services.

Mayor Westmoreland stated the rate of City growth has increased over the past few years, and City Administrator Ifo Pili has done an excellent job leading staff, overseeing City expansion, and being a voice in the State and the County.

Mayor Westmoreland said the City values staff and attempts to fairly compensate employees and explained a pay scale median for the City has been established in relation to other cities. Mr. Pili has been the City Administrator for eight years, and even after a pay increase three years ago, he remained at the bottom of the pay scale for comparable cities. Mayor Westmoreland stated the salary increase is to bring Mr. Pili's salary in line with City pay scale standards for staff members, as well as a reflection of Mr. Pili's high performance.

11. BID AWARDS

11.B. Pole Canyon Water Line and Sewer Force Main – Landmark Excavation

Councilmember Curtis stated the item's materials indicated the project will be funded by the State and asked if the project would be funded with the approved White Hills bonds.

City Engineer Chris Trusty stated the sewer force main portion will be funded with the White Hills bonds. The water line portion will be funded by Facebook. Facebook will receive impact fee credits as reimbursement.

15. PRELIMINARY PLATS & SITE PLANS

15.A. SITE PLAN – Dollar Tree

15.B. SITE PLAN – 7-Eleven

Councilmember Curtis inquired regarding the timing and the responsibility regarding the extension of the block wall on the back of the property and if the removal of the Porter's Crossing median south of Pony Express Parkway will allow for a right only or left and right turns onto Porter's Crossing Parkway.

Mr. Trusty stated a portion of the median will be removed, leaving approximately 80 feet to create a protected left-hand turn onto Pony Express Parkway, while still allowing for a left-hand southbound turn into the 7-Eleven parking lot.

Councilmember Curtis expressed concern regarding the timing of installation and enforcement of completion of the master developer's responsibilities such as the removal of a portion of the median and the installation of the block wall.

Mr. Trusty stated he understood the median removal and the completion of the block wall had been included on the site plan as 7-Eleven's responsibility. Mr. Hadley confirmed that the responsibility was part of the 7-Eleven agreement.

Councilmember Curtis stated his preference for the block wall installation to occur during the initial stages of the project to screen the adjacent residential properties during construction.

Applicant representative Ryan Forsyth stated a willingness to install the rock wall during the first stages of construction; however, winter weather conditions may hinder the rock wall installation.

Mr. Trusty verified the exit from the 7-Eleven parking lot onto Porter's Crossing Parkway is a right turn only and the Pony Express Parkway access permits both right and left turns.

Mr. Trusty stated the proposed detention pond area to be dedicated to the City is above ground and covered with grass, similar to the detention pond in front of the office buildings east of the project.

Councilmember Gray expressed concern that should the City require use of the right-of-way, the detention pond would need to be relocated or put underground at the City's expense. He recommended requiring the applicants to locate detention ponds underground if they are within the right-of-way.

Councilmember Curtis expressed concern regarding the front of the Dollar Tree facing east, with the rear of the building facing the 7-Eleven, instead of fronting on Pony Express Parkway.

Mr. Mumford explained the building reorientation was due to the commercial design standards requiring parking in the rear of the building and in relation to the drive aisle and 7-Eleven. He stated the front of the building could face Pony Express Parkway; however, it would increase the walking distance for customers to enter the building.

Councilmember Love expressed support for the building orientation as presented, as all sides of the building are aesthetically appealing.

16. RESOLUTIONS

16.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the First Amendment to the Development Agreement Between Eagle Mountain City, Utah, and Stadion, LLC.

Mr. Trusty explained this project connects the Pole Canyon sewer and water system to City infrastructure. Staff obtained bids for the project and Facebook agreed to assist with funding the project, if they received credit for their contribution in the development agreement. This agreement benefits Facebook through the creation of additional offsite improvements to the west access road

and waterline project, resulting in increased transportation and water access. Facebook will not receive impact fee credits towards this project.

16.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the First Amendment to the Stadion Water and Sewer Agreement.

Ms. Kofoed inquired if the approval of the agreement would include the additional \$1.7 million for the sewer line.

City Attorney Jeremy Cook verified the approval of the resolution would include the updated terms regarding the sewer line. He explained the terms of the agreement resulted in impact fee credits. Facebook will front the funds for this project and receive impact fee credits to apply to future phases of the project.

17. ORDINANCES/PUBLIC HEARINGS

17.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code, Adopting Chapter 17.51 Warehouse Farming Overlay Zone.

Long-Range Planning Manager Pete Kane presented the item and explained the revisions include the Council's requested additions of language specifying preferred locations for the overlay zone, a height limitation of 35 feet, and filtration requirements.

18. MOTION

18.A. Sunset Flats – Alternative Fencing Request

Planning Manager Mike Hadley said the applicant is requesting an alternative fencing approval for vinyl fencing like the fencing in the SilverLake South development.

Councilmember Curtis suggested Municipal Code be amended to include a preapproved vinyl fence option, with sufficient reinforcement to withstand City weather conditions. The approved wood fences do not wear well and require a lot of maintenance.

Councilmember Gray suggested that Municipal Code be updated to require masonry fence along the major corridors, due to safety concerns.

Mr. Mumford stated the City had adopted The Ranches Homeowners Association fence standards to maintain continuity through the City. He concurred, however, that the wood fences are not preferred by developers due to the high maintenance and the availability of other affordable options. He expressed support of reviewing, discussing, and amending Municipal Code fencing standards.

Councilmember Love requested clarification regarding which style of fencing was being requested, as the application included multiple fencing options.

Mr. Hadley stated the applicant will be in attendance during policy session and can clarify the desired style.

Councilmember Curtis clarified his desire is to amend fencing standards and stated his preference is for non-wood fencing but is willing to consider other options.

3. ADJOURN TO A CLOSED EXECUTIVE SESSION

No closed session was held. The meeting was adjourned at 5:38 p.m.

7:00 P.M. POLICY SESSION – ELECTRONIC MEETING VIA LIFESIZE

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love.

CITY STAFF PRESENT ELECTRONICALLY: Ifo Pili, City Administrator; Paul Jerome, Assistant City Administrator/Finance Director; Steve Mumford, Assistant City Administrator/Community Development Director; Pete Kane, Long-Range Planning Manager; Michael Hadley, Planning Manager; Jessa Porter, Planner; Fionnuala Kofoed, City Recorder; Elizabeth Fewkes, Recording Secretary; Chris Trusty, City Engineer; Aaron Sanborn, Economic Development Director; Jeremy Cook, City Attorney; Brad Hickman, Parks and Recreation Director; Mack Straw, Public Utilities Manager; Zac Hilton, Streets and Storm Drain Manager; Jeff Weber, Fleet and Facilities Operations Director; Ross Fowlks, Fire Chief; and Angela Valenzuela, Human Resource Manager.

4. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 7:04 p.m.

5. PLEDGE OF ALLEGIANCE

City Recorder Fionnuala Kofoed led the Pledge of Allegiance.

6. APPOINTMENTS

3.A. Youth Council

Ms. Kofoed explained the purpose of appointing the Youth Council is to allow them to convene to fill the Youth Councilmember vacancy; the Youth Council will be sworn in once conditions allow for in-person public meetings.

Ms. Kofoed stated that Logan Welch is new Councilmember; the other Councilmembers are returning members of Youth Council. She explained the election was still held, even though there were only five applicants, in order to determine the mayor. The elected youth officials will evaluate

applications and select an additional Councilmember to recommend to the Mayor and City Council to fill the vacancy.

MOTION: *Councilmember Love moved to appoint Sydney Williams as Youth Mayor. Councilmember Clark seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

MOTION: *Councilmember Love moved to appoint Ashton Bernabeu as a Youth Councilmember. Councilmember Curtis seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

MOTION: *Councilmember Love moved to appoint Logan Welch as a Youth Councilmember. Councilmember Gray seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

MOTION: *Councilmember Love moved to appoint Salem Shimakonis as a Youth Councilmember. Councilmember Gray seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

MOTION: *Councilmember Love moved to appoint Kayson Welch as a Youth Councilmember. Councilmember Gray seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

7. INFORMATION ITEMS/UPCOMING EVENTS

- The Eagle Mountain Chamber of Commerce will host a luncheon on Thursday, July 9, 2020 from 11:45 a.m. to 1:00 p.m. at Garden Near the Green. The featured speaker is Peter Jay, Economic Development Director of Utah Valley University. Register at the Chamber website – eaglemountainchamber.com.
- The Utah Red Cross will hold a blood drive on July 27, 2020 at City Hall from 9:00 a.m. to 3:00 p.m. Blood donations are urgently needed at this time. Register at redcrossblood.org and enter sponsor code “Eagle Mountain City.”
- The Miss Eagle Mountain Scholarship Pageant will be held on Friday, July 10, 2020 at 7:00 p.m. Due to COVID-19 guidelines, in-person attendance at the pageant will be restricted to contestants and two guests. A livestream of the pageant will be available to the public. When the link is available it will be posted on the City website calendar.
- Guidelines for individuals and businesses during the yellow phase of COVID-19 response are available at coronavirus.utah.gov.

- To receive City notifications, including emergency info, news, events, and traffic alerts, sign up at emcity.org/notifyme.

8. PUBLIC COMMENTS

None.

9. CITY COUNCIL/MAYOR'S ITEMS

Councilmember Curtis

Councilmember Curtis stated he is against a City-wide ban on fireworks as it would be ineffective in preventing fires, because fires are caused by individuals illegally launching fireworks. He encouraged people to adhere to firework safety guidelines. He expressed sympathy for the Oak Hollow resident concerns regarding the 7-Eleven gas station. He reviewed the comments and study materials provided by residents and found insufficient comprehensive, universal data, and inadequate legal standards necessary to grant the conditional use permit appeal, and he agreed with the Planning Commission's decision. He assured residents their concerns were taken seriously and thoroughly considered, and that the City Council cares about the citizens.

Councilmember Gray

Councilmember Gray expressed appreciation for Diana Anderson's bravery in speaking before the City Council and the professionalism of her presentation during the 7-Eleven conditional use permit appeal. He stated that as the Planning Commission did their due diligence, the City Council determined the appropriate action was to uphold the conditional use permit approval. He said the Senior Citizen Advisory Council plans to provide senior exercise classes tentatively scheduled to begin in August at 10:00 a.m. on Thursdays.

Councilmember Clark

Councilmember Clark stated her appreciation for resident involvement. She commended City staff and leadership for their efforts and excellent work on behalf of the City. She stated the City Council and Planning Commission are required to make difficult decisions and thanked the Planning Commission and the City Council for their efforts.

Councilmember Burnham

Councilmember Burnham concurred with Councilmember Curtis' statements regarding banning fireworks and the appeal studies. She stated Ms. Anderson was eloquent and well-spoken during the Appeals Board meeting, and she appreciates when residents participate in local issues.

Councilmember Love

Councilmember Love welcomed the Youth Council Members. She thanked Ms. Anderson for her hard work and efforts in investigating a cause and advocating for her community. The conditional use permit appeal was a difficult decision for the City Council and the expressed concerns were seriously considered by Councilmembers.

Mayor Westmoreland

Mayor Westmoreland thanked law enforcement and the fire department for their efforts during difficult circumstances and for their professionalism. He stated the fireworks map is regularly reviewed and heavily regulated. He thanked residents for their efforts to be careful, respectful, and good neighbors.

CONSENT AGENDA

10. AGREEMENTS

- 10.A. AGREEMENT – Professional Service Agreement between Eagle Mountain City and Accela for Land Management Software and Support.
- 10.B. AGREEMENT – Professional Service Agreement between Eagle Mountain City and Byrne for Software Implementation.
- 10.C. AGREEMENT – Second Addendum to an Agreement between Eagle Mountain City and Ifo Pili for City Administrator Services.

11. BID AWARDS

- 11.A. 2020 Eagle Mountain Mirco Surface Project – Geneva
- 11.B. Pole Canyon Water Line and Sewer Force Main – Landmark Excavation

12. BOND RELEASES

- 12.A. Brylee Farms Phase A Plat 1 – Into Warranty
- 12.B. Mt. Airey Plat E – Out of Warranty

13. CHANGE ORDERS

- 13.A. Pony Express Parkway Change Order #3 – Kenny Seng

14. MINUTES

- 14.A. June 16, 2020 – Regular City Council Meeting

15. PRELIMINARY PLATS & SITE PLANS

- 15.A. SITE PLAN – Dollar Tree
- 15.B. SITE PLAN – 7-Eleven

16. RESOLUTIONS

- 16.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the First Amendment to the Development Agreement Between Eagle Mountain City, Utah, and Stadion, LLC.
- 16.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the First Amendment to the Stadion Water and Sewer Agreement.
- 16.C. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Amending the Eagle Mountain City Policies and Procedures Manual.
- 16.D. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving an Interlocal Cooperation Agreement between Utah County and Eagle Mountain City for Disbursement from the Coronavirus Relief Fund.

MOTION: *Councilmember Curtis moved to approve the consent agenda with the following conditions:*

- 1. Items 15.A. and 15.B. shall be removed and included as scheduled items for further discussion;*
- 2. The City Attorney's memo regarding item 16.B. shall be included in the approval; and*
- 3. Staff shall be authorized to make changes to items 10.A. and 10. B., excluding term length and cost.*

Councilmember Gray seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.

SCHEDULED ITEMS

17. ORDINANCES/PUBLIC HEARINGS

- 17.A. ORDINANCE – An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code, Adopting Chapter 17.51 Warehouse Farming Overlay Zone.

Mayor Westmoreland opened the public hearing at 7:37 p.m. No comments were submitted to the City Recorder's Office and no public was in attendance to make comment. As there were no comments, Mayor Westmoreland closed the hearing.

MOTION: *Councilmember Clark moved to approve an ordinance of Eagle Mountain City, Utah, amending the Eagle Mountain Municipal Code, adopting Chapter 17.51 Warehouse Farming Overlay Zone. Councilmember Curtis seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

18. MOTION

18.A. Sunset Flats – Alternative Fencing Request

Applicant Susan Palmer clarified the requested fence style as the Homeland vinyl fencing in the honey maple shade pictured on pages 8 and 9 of the materials she submitted, and stated she was unsure if she would be able to use the same manufacturer as the SilverLake South development.

Councilmember Curtis expressed concern that without physically seeing the color, it is difficult to approve the fence. He expressed favor for the exact fencing used in SilverLake and preferred the chai gray shade, as it blends in better with the fencing previously required by The Ranches Homeowners Association.

Councilmember Gray inquired if the previously approved SilverLake fencing and the proposed fencing include a center metal support rail and expressed a personal preference for the honey maple shade but stated he would support the chai gray to match existing fencing, if desired by the other Councilmembers.

Discussion ensued regarding the appearance and structural elements of the previously approved alternative fencing in SilverLake.

Councilmember Love expressed favor for the maintaining gray fencing throughout the City for aesthetical continuity.

Councilmember Gray inquired if after the approval of this item, the City Council could declare the Municipal Code fencing standards as under review to hold the approval of other application until the standards are amended.

Mr. Cook stated the City Council may declare on record that the fencing standards are under review and withhold approvals until Municipal Code is amended and all future applications would be subject to that review.

MOTION: *Councilmember Burnham moved to approve an alternate fencing option that is significantly consistent aesthetically to and with as good or better metal reinforcement and strength qualities as the SilverLake South fencing product as determined by staff. Councilmember Clark seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

Discussion ensued regarding the elements to potentially require in the alternate fencing approval including steel reinforcement, a middle support rail, and color.

Mr. Cook expressed concern regarding creating a situation where the City Council is unable to approve applications due to the fencing review and requested clarification.

Councilmember Burnham stated that if the standards are under review, the Planning Commission is unable to review applications, as has occurred in the past.

Discussion ensued regarding which sections of the Municipal Code would be included in the review.

Councilmember Burnham expressed concerns with one Councilmember stating on record that Municipal Code standards are under review resulting in a hold being placed on all applicable development applications. She proposed to instead direct staff to review Municipal Code fencing and bring amendment suggestions to the City Council as soon as possible. Mr. Cook concurred with Councilmember Burnham due to the broadness of the fencing standards within Municipal Code and the potential complications of placing those standards under review.

15. PRELIMINARY PLATS & SITE PLANS

15.A. SITE PLAN – Dollar Tree

Mr. Hadley presented the item and said the City Council approved the Carson Commercial Master Site Plan on August 6, 2019. This application is being proposed in conjunction with the 7-Eleven site plan. The applicant has added architectural design and features to better conform to Municipal Code. The building is 10,000 square feet and is set back to allow for access and an exit lane for better flow between Dollar Tree and 7-Eleven. The parking has been moved to the side and rear, and the project provides the required 34 parking stalls and 2 ADA stalls. Dollar Tree will be responsible for the landscaping on the store site. Headlight screening will be required with a combination of berming and vegetation. Plants must be added to the site plan between the sidewalk and street.

The Planning Commission recommended approval to the City Council with the following conditions: the applicant shall meet the lighting standards and present a compliant lighting plan with an updated lumen count to City Council; the applicant shall work with staff and City Council on an agreement to allow right-of-way monument signage representing multiple business in the commercial development; the plan shall comply with architectural standards; and the applicant shall submit a Municipal Code-compliant landscaping plan.

Councilmember Love expressed concern regarding the exit on Porter's Crossing Parkway due to the intersection's proximity to Pony Express Parkway.

Mr. Trusty stated the applicant proposed the exit onto Porter's Crossing Parkway. The resulting removal of the median to permit left-hand turns into the site also makes it possible for motorists to make a left-hand turn onto Porter's Crossing Parkway.

Councilmember Love suggested signage and a partial median in the entrance to discourage left-hand turns.

Discussion ensued regarding options to encourage right-hand turns and/or prevent left-hand turns onto Porter's Crossing Parkway.

Councilmember Curtis reviewed the history of the project and stated this traffic configuration was a compromise to allow a left-hand turn without routing traffic through the adjacent neighborhood.

Councilmember Burnham concurred with Councilmember Curtis' recollection that the Council had agreed to allow the applicant the left-hand turn to provide adequate access to the property. She verified with staff that the applicant had met the Planning Commission's conditions regarding architectural and landscaping plan standards. She stated her opinion that allowing a left-hand turn onto Porter's Crossing Parkway will reduce the number of left-hand turns on Pony Express Parkway.

Councilmember Clark stated the traffic pattern was to appease concerns of the Oak Hollow residents and said other gas stations in the City that are located on intersections with similar orientations allow for left-hand turns onto streets similar to Porter's Crossing Parkway. She stated her desire to honor the previous agreement with the applicant to permit the access.

Councilmember Gray expressed concerns regarding safety due to human error and the potential for residents to disregard proper traffic patterns. Although he expressed his preference for the traffic to be routed through the neighborhood, he agreed the Council should honor the previous agreement with the applicant.

Discussion ensued regarding traffic safety and Councilmember preferences.

Mr. Trusty stated the City Council could require the applicant to locate the detention pond underground, and he explained the site plan approval is separate from the utility plan approval. The detention pond is a part of the utility plan approval.

Councilmember Curtis verified that both the Dollar Tree and 7-Eleven have detention pond requirements.

Councilmember Burnham verified the block wall had been completed along the rear of the Dollar Tree property.

MOTION: *Councilmember Gray moved to approve the Dollar Tree site plan with the following conditions:*

- 1. The applicant shall meet the lighting Code standards in EMMC 17.56 and present a compliant lighting plan with an updated lumen count to City Council;*
- 2. The applicant shall work with staff and City Council on an agreement to allow right-of-way monument signage representing multiple business in the commercial development; and*
- 3. The storm drain located in the right-of-way shall be underground storage.*

Councilmember Clark seconded the motion.

Councilmember Burnham inquired if the applicant was amenable to the condition requiring underground water storage.

Applicant representative Ryan Forsyth expressed concern regarding the underground water storage requirement. It would be insufficient to withstand the weight of road expansion and may require a concrete system to pipe the water to another location. The location would be dissimilar to the other projects in the area with right-of-water detention ponds, and the cost of the project would increase significantly.

Mr. Trusty stated he did not recall a time when the City removed a retention or detention pond to make use of a right-of-way. He does not have concerns regarding a surface detention pond located elsewhere on the property. He stated the City should have sufficient width to expand the road if needed; however, he expressed concern with permitting a surface detention pond within the right-of-way instead of on the property.

Councilmember Gray stated that although the underground detention pond would not withstand the weight of a drive lane, the width of the right-of-way exceeded the footage necessary for road expansion. He said the trail system could be installed above an underground detention pond, if necessary, in the future. He asked if the property has another aboveground water storage option.

Mr. Forsyth stated due to the shallowness of the property, locating the detention pond on site would be difficult. He stated the plan to install a shallow pond with decorative landscaping would be aesthetically pleasing, and the berming would provide headlight screening for the property, as requested by the Planning Commission. He stated a willingness to install partial underground storage or to make a financial contribution towards a more robust future system.

Councilmember Curtis proposed to locate the detention pond in the rear landscaping and stated his disfavor for the aboveground detention pond near the property, as it is aesthetically unappealing.

Discussion ensued regarding potential locations on the property for an aboveground detention pond, the possibility of a combination of above and underground water storage, potential engineering concerns regarding the location and size of the pond, balancing City and developer needs, preferred aesthetics, volume retention requirements, and the optimal depth of an aboveground detention pond.

Councilmember Gray asked if the application should be tabled until the concerns regarding the detention pond are resolved and reiterated his concerns regarding allowing storm drainage within the City right-of-way. He expressed his desire to allow the project to move forward while protecting the interest of the City. Mr. Trusty concurred with Councilmember Gray's concern in allowing the required on-site water retention offsite and within the City right-of-way.

Mr. Forsyth asked who would be responsible for maintaining the detention pond should it be permitted in the right-of-way and expressed the willingness to maintain the property. He reiterated the shallow depth of the property causes issues with providing adequate spacing for both delivery truck access and detention ponds.

Discussion resumed regarding possible water storage solutions including piping the water to other undeveloped lots, locating part of the water storage on the City-owned landscaping to the rear of

the property, permitting partial water detention on the southern portion of the right-of-way not needed for a future road expansion, concerns regarding potential future City needs that would utilize more of the right-of-way, the payment of a bond to permit use of the right-of-way to offset potential future costs to the City, and worst case scenarios of future costs and infrastructure requirements for the City should the water storage be permitted and then removed from the right-of-way.

Mr. Trusty stated the grading could facilitate locating adequate water storage on the southern portion of the property.

Mr. Forsyth requested the City Council approve the site plan, excluding the detention pond, to allow him to meet his deadlines. The project is behind schedule as he had not been aware of the conditional use permit requirement.

Discussion ensued regarding concerns with approving the site plan, excluding the storm drain plan, and whether to allow the storm drain plan to be approved by staff or return to the City Council for consideration. Mr. Cook recommended tabling the storm drain portion of the project.

Mr. Trusty recommended requiring the water storage to be located on-site to permit the applicant latitude in exploring water storage solutions.

Councilmembers Clark and Curtis requested the applicant not consider locating water storage in the City-owned entryway landscaping south of the property.

Councilmember Curtis stated the City was aware that the commercial lots were shallow and knew issues would arise during development of the property. He expressed willingness to permit a portion of the water storage to be located within the City right-of-way, due to the limitations caused by the depth of the property, while still minimizing future concerns for the City.

Councilmember Burnham stated she did not object to water storage in the City-owned entryway landscaping but preferred that detention pond storage be located on-site.

Mr. Forsyth stated permitting the application to move forward would allow him to meet the terms of his lease, and if he is unable to determine a workable, on-site storage solution, he will return to the Council for further discussion.

REPLACEMENT MOTION: *Councilmember Burnham moved to approve the Dollar Tree site plan with following conditions:*

- 1. Drainage and water storage shall be located on the applicant's property;*
- 2. The applicant shall meet the lighting standards in EMMC 17.56 and present a compliant lighting plan with an updated lumen count to City Council; and*
- 3. The applicant shall work with staff and the City Council on an agreement to allow right-of-way monument signage representing multiple business in the commercial development.*

Councilmember Curtis seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.

15.B. SITE PLAN – 7-Eleven

Mr. Hadley presented the item. The building is 4,067 square feet and the proposed design uses different and acceptable materials and is consistent with surrounding buildings in the development. The project provides the required 20 regular parking stalls and 1 ADA stall. The landscaping plan exceeds the number of required trees and turf and will be maintained by 7-Eleven. The required headlight screening will be a combination of berming and vegetation. The current sign proposal does not meet City standards.

The Planning Commission recommended approval to City Council with the following conditions: all landscaping shall be improved up to Pony Express Parkway with a mixture of plants and rock, the signage shall comply with Municipal Code requirements, and all lighting shall comply with the dark sky lighting ordinance.

Mr. Forsyth verified his willingness to relocate the vent to the northwest corner of the property.

Discussion ensued debating whether increasing the height or distance from residents of the vent would best mitigate health concerns.

Long-Range Planning Manager Pete Kane said environmental scientist Sean Warner with the Underground Storage Tank Section of the Department of Environmental Quality at the Department of Environmental Response and Remediation had informed him that the Petroleum Equipment Institute's recommendation and guidelines stipulate to locate the vent as far away from residential property lines or as high as possible, and Mr. Warner had not indicated an increase in height or distance as preferential.

Discussion ensued clarifying the vent height as 12 feet and the canopy height as 17 feet 6 inches. Locating the vent in the canopy would provide a height increase of 5 feet 6 inches. Locating the vent in the northwest corner of the property would increase the distance from the residential property by approximately 50 feet.

Councilmember Curtis stated his preference to locate the vent in the northwest corner.

Mr. Forsyth agreed to employ his best efforts to complete the block wall at the rear of the property before winter.

MOTION: ***Councilmember Curtis moved to approve the 7-Eleven site plan with the following conditions:***

- 1. All landscaping shall be improved up to Pony Express Parkway with a mixture of plants and rock;***
- 2. Signage shall comply with Municipal Code requirements;***
- 3. All lighting shall comply with the dark sky lighting ordinance;***

4. *The detention pond shall be located within the property;*
5. *The applicant shall use reasonable best efforts to complete the rear block wall extension before winter; and*
6. *The vent shall be located in the farthest point possible on the northwest corner of the property.*

Councilmember Burnham seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.

19. CITY COUNCIL/MAYOR'S BUSINESS

None.

20. CITY COUNCIL BOARD LIAISON REPORTS

Councilmember Clark

Councilmember Clark said Be Ready Eagle Mountain will hold a meeting to discuss preparation for and the prevention of fires on Thursday, July 9, 2020 at 7:00 p.m. at City Hall, in accordance with social distancing guidelines. She encouraged residents to view and use emergency response and preparedness resources available on the City website.

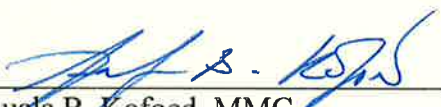
21. COMMUNICATION ITEMS

22. ADJOURNMENT

MOTION: *Councilmember Gray moved to adjourn the meeting at 9:30 p.m. Councilmember Curtis seconded the motion. Those voting aye: Donna Burnham, Melissa Clark, Colby Curtis, Jared Gray, and Carolyn Love. The motion passed with a unanimous vote.*

The meeting was adjourned at 9:30 p.m.

Approved by the City Council on July 21, 2020.


Fionnuala B. Kofoed, MMC
City Recorder

